

**The request for evidentiary sanction is DENIED WITHOUT PREJUDICE. Any request for issue or evidentiary sanctions must be accompanied by a separate statement. (Rules of Court, rule 3.1345, subd. (a)(7).)**

Motion to Compel the Deposition of Defendant Bhavesh Patel and Production of Documents and Request for Monetary Sanctions in the Amount of \$2,461.05

**Plaintiff's motion to compel the deposition of defendant Patel and production of documents is GRANTED.**

**Service of a notice of deposition is effective to require a party to attend and testify as well as produce any document for inspection and copying. (Code Civ. Proc. § 2025.280 subd. (a).)**

**Defendant Patel failed to appear for his properly notice deposition on December 17, 2025.**

**Defendant Patel is ordered to appear for his deposition via Zoom, or any appropriate remote platform, on May 19, 2026, and to produce the documents set forth in the Requests for Production of Document attached to the deposition notice.**

**The request for monetary sanction is GRANTED.**

**Monetary sanctions in the amount of \$2,461.05 are to be paid to Plaintiff's counsel within fifteen (15) days of this court's order.**

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24CV-01907                      Key Star Capital Fund III, L.P. vs Kenneth Zwart, et al.

Application for Writ of Attachment

**The application of plaintiff Key Star Capital Fund III, L.P, for a writ of attachment against defendants Kenneth J. Zwart and Beverly A. Zwart is GRANTED in the amount of \$376,844.11.**

**A writ of attachment will issue upon the filing of an undertaking of \$10,000 by Key Star Capital. (Code Civ. Proc. §§ 489.210, 489.220.)**

**Having reviewed the application, supporting memorandum of points and authorities and declaration, the court finds that Key Star Capital's claim is one on which an attachment may be issued; Key Star Capital has established the probable validity of the claims on which the attachment is based; the attachment is sought for no purpose other than the recovery on the claim on which the attachment is based; and the amount to be secured by the attachment is greater than zero.**

**Key Star Capital has put forth sufficient evidence supporting establishing probable validity as to the claim regarding the promissory note. (Hrebenar Decl. ¶¶5, 9-11, 16, and Exhibits 1 and 2 attached thereto.)**

**The amount to be secured by the attachment was determined by an evaluation of the probable validity of Key Star Capital's claim regarding the principal amount remaining on**

a written commercial promissory note and filing costs, but not as to the interest claimed or attorney's fees.

The interest amount claimed through April 6, 2026, of \$60,352.68, is not supported by admissible evidence. Although a daily per diem of \$122.64 is given, there is no evidence of the date the interest started accruing or how that amount was ascertained. Accordingly, the \$60,352.68 is subtracted from the requested amount to be secured by attachment.

The amount of estimated attorney's fees of \$17,390.79 was also reduced. The declaration of Hrebenar implies that the requested attorney's fees are based on Local Rule 3.4. (Hrebenar Decl. ¶ 16.) However, the amount of attorney's fees based on Local Rule 3.4 amounts to between \$7,929.10 and \$8,532.62, depending on whether the claimed interest is included. Further, the estimated attorney's fees are not supported by a declaration from counsel. Accordingly, the court in its discretion includes estimated attorney's fees of \$8,500.

Accordingly, the amount to be secured by attachment is \$376,844.11.

Plaintiff is to file prefilled right to attach order and writ of attachment after hearing forms (AT-120 and AT-135) within ten (10) days of this court's order.

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24CV-03398

Edith Bernal vs Foster Poultry Farms, LLC, et al.

Motion for Terminating and Monetary Sanctions CCP 2031.300 (C), 2023.010 (G), & 2023.030 (A)-(D)

Defendant's motion is **GRANTED IN PART** and **DENIED IN PART**.

The request for judicial notice is **GRANTED**.

Plaintiff Bernal has failed to comply with this court's August 7, 2025, order.

The request for monetary sanction is **GRANTED**.

Monetary sanctions in the amount of \$1,500 are to be paid to Defendant's counsel within fifteen (15) days of this court's order.

Plaintiff is ordered to comply with this court's discovery order entered on August 7, 2025, within ten (10) days of being served with this order.

The request for terminating sanctions is **DENIED WITHOUT PREJUDICE**.

Other than the delay of the case due to Plaintiff's failure to comply with this court's August 7, 2025, order, the court finds that there is no prejudice to Defendant in the absence of the discovery responses that are the subject of the court's prior order. As a result, the request for terminating sanctions is premature, and termination would be punitive rather than remedial. (*Morgan v. Ransom* (1979) 95 Cal.App.3d 664, 669-670.)